

ATTORNEY OR PARTY WITHOUT ATTORNEY (Name, State Bar number, and address):
Christopher D. Mandarich SB220693

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ATTORNEY FOR (Name): CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A.

FOR COURT USE ONLY

FILED
Superior Court of California
County of Los Angeles
04/11/2024

David W. Slayton, Executive Officer / Clerk of Court

By: H. Martinez Deputy

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

STREET ADDRESS: 9425 PENFIELD AVENUE,
MAILING ADDRESS:

CITY AND ZIP CODE: CHATSWORTH CA 91311

BRANCH NAME: CHATSWORTH COURTHOUSE

PLAINTIFF/PETITIONER: CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A.

DEFENDANT/RESPONDENT: AGUSTIN GUEVARA, an individual

REQUEST FOR DISMISSAL

CASE NUMBER: 24CHLC00298

A conformed copy will not be returned by the clerk unless a method of return is provided with the document.

This form may not be used for dismissal of a derivative action or a class action or of any party of cause of action in a class action. (Cal. Rules of Court, rules 3.760 and 3.770.)

1. TO THE CLERK: Please **dismiss** this action as follows:

a. (1) ☐ With prejudice (2) ☒ Without prejudice

b. (1) ☐ Complaint (2) ☐ Petition

(3) ☐ Cross-complaint filed by (name):

on (date):

(4) ☐ Cross-complaint filed by (name):

on (date):

(5) ☐ Entire action of all parties and all causes of action

(6) ☒ Other (specify):* DOES 1 THROUGH 10 ONLY

2. (Complete in all cases except family law cases.)

The court ☐ did ☒ did not waive court fees and costs for a party in this case. (This information may be obtained from the clerk. If court fees and costs were waived, the declaration on the back of this form must be completed).

Date: March 30, 2024

Christopher D. Mandarich SB 220693

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

*If dismissal requested is of specified parties only of specified causes of action only, or of specified cross-complaints only, so state and identify the parties, causes of action, or cross-complaints to be dismissed.

(SIGNATURE)

Attorney or party without attorney for: CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A.

☒ Plaintiff/Petitioner

☐ Defendant/Respondent

☐ Cross-Complainant

3. TO THE CLERK: Consent to the above dismissal is hereby given.**

Date:

(TYPE OR PRINT NAME OF ☐ ATTORNEY ☐ PARTY WITHOUT ATTORNEY)

** If a cross-complaint – or Response (Family Law) seeking affirmative relief – is on file, the attorney for cross-complainant (respondent) must sign this consent if required by Code of Civil Procedure section 581 (i) or (j).

(SIGNATURE)

Attorney or party without attorney for:

☐ Plaintiff/Petitioner

☐ Defendant/Respondent

☐ Cross-Complainant

(To be completed by clerk)

4. ☒ Dismissal entered as requested on (date): 04/11/2024

5. ☐ Dismissal entered on (date): as to only (name):

6. ☐ Dismissal **not entered** as requested for the following reasons (specify):

7. a. ☒ Attorney or party without attorney notified on (date): 04/12/2024

b. ☐ Attorney or party without attorney not notified. Filing party failed to provide

☐ a copy to be conformed ☐ means to return conformed copy

Date: 04/12/2024

Clerk, by

H. Martinez

, Deputy

PLAINTIFF/PETITIONER: CAVALRY SPV I, LLC, AS ASSIGNEE OF CITIBANK, N.A.	CASE NUMBER:
DEFENDANT/RESPONDENT: : AGUSTIN GUEVARA, an individual	24CHLC00298

COURT'S RECOVERY OF WAIVED COURT FEES AND COSTS

If a party whose court fees and costs were initially waived has recovered or will recover \$10,000 or more in value by way of settlement, compromise, arbitration award, mediation settlement, or other means, the court has statutory lien on that recovery. The court may refuse to dismiss the case until the lien is satisfied. (Gov. Code, Section 68637)

1. The court waived fees and costs in this action for *(name)*:
2. The person in item 1 is *(check one)*:
 - a. ☐ not recovering anything of value by this action.
 - b. ☐ recovering less than \$10,000 in value by this action.
 - c. ☐ recovering \$10,000 or more in value by this action. *(If item 2c is checked, item 3 must be completed.)*
3. ☐ All court fees and costs that were waived in this action have been paid to the court *(check one)*: ☐ Yes ☐ No

I declare under penalty of perjury under the laws of the State of California that the information above is true and correct.

Date: March 30, 2024

Christopher D. Mandarich SB 220693

(TYPE OR PRINT NAME OF ☒ ATTORNEY ☐ PARTY MAKING DECLARATION)


 (SIGNATURE)